

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

X

GLENN JOHNSON

**Index No.
Date Index No. Purchased**

Plaintiff,

-against -

**SUMMONS
Plaintiff Designates Bronx
County as the Place of Trial.
Pursuant to C.P.L.R. 503
Jury Trial Demanded**

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
BRONX DISTRICT ATTORNEY'S OFFICE.
DETECTIVE MICHAEL BEST, SHIELD No.586, IN HIS INDIVIDUAL
AND OFFICIAL CAPACITY, AND DETECTIVE ANDREW TUERS,
TAX REGISTRATION NO. 952305, IN HIS INDIVIDUAL AND OFFICIAL
CAPACITY.

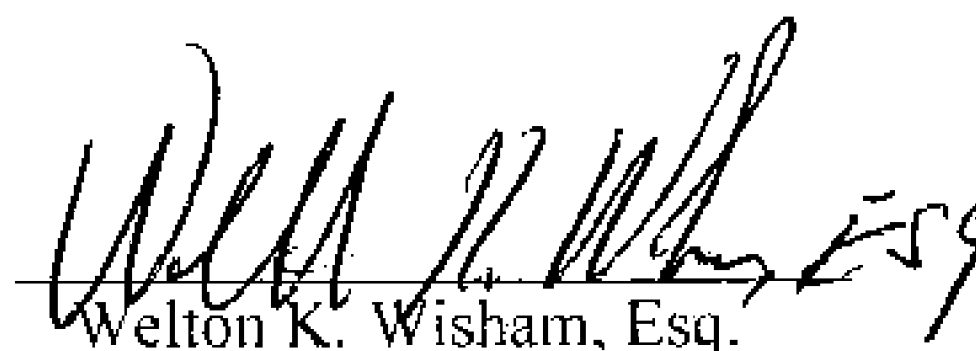
Defendants.

X

You are hereby summoned to answer the Complaint in this action and to serve a copy
of your answer or if the Complaint is not served with this summons, to serve a notice of appearance
on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the
day of service (or within 30 days after the service is complete if this summons is not personally
delivered to you within the State of New York) and in case of your failure to appear or answer,
judgment will be taken against you by default for the relief demanded in the complaint.

DATED: May 22, 2022
Bronx, New York

By


Welton K. Wisham, Esq.

The Law Offices of Welton K. Wisham
1200 Waters Place, Suite 105
Bronx, New York 10461
718- 924-3557 Office

Defendants Address:

The New York City Police Department
One Police Plaza,
York, New York 10007

City of New York Department of Law
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

GLENN JOHNSON

Plaintiff,

-against -

COMPLAINT

Index No.

ECF

**Plaintiff Designates Bronx
County as the Place of Trial
Jury Trial Demanded**

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
BRONX DISTRICT ATTORNEY'S OFFICE,
DETECTIVE MICHAEL BEST, SHIELD No.586, IN HIS INDIVIDUAL
AND OFFICIAL CAPACITY, AND DETECTIVE ANDREW TUERS,
TAX REGISTRATION NO. 952305, IN HIS INDIVIDUAL AND OFFICIAL
CAPACITY,

Defendants,

Plaintiff, by his attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for his Complaint, alleges upon information and belief the following against Defendants. The City of New York, The New York City Police Department. The Bronx District Attorney's office and Police officers, Michael Best, and Andrew Tuers, Detectives of the New York City Police Department who are believed to be assigned to the 42nd police precinct located at 430 Washington Ave. Bronx, New York, at the time of this incident complained of herein.

PRELIMINARY STATEMENT

1. This action arises out of the Defendants' role in Plaintiff's unreasonable seizure, and malicious prosecution which caused Mr. Johnson to be deprived of his liberty for approximately eight months without probable cause and without due process of law.

2. Mr. Johnson was held in custody and arrested on November 24, 2020, and accused of sexual abuse, unlawful imprisonment, and harassment. All charges against Mr. Johnson were favorably dismissed on July 6, 2021.

3. The Defendant officers, Michael Best and Andrew Tuers, arrested the Plaintiff upon information which the Defendants knew or should have known at the time of Mr. Johnson's arrest that the information provided to the officers by Tammy Wylie, was false, unreliable and objectively unreasonable and did not constitute probable cause for Plaintiff's arrest and prosecution.

4. This action is brought pursuant to 42 U.S Section 1983, and under New York State law to redress Plaintiff's rights under the Fourth Amendment and Fourteenth Amendments to the Constitution of the United States and pursuant to Article I Section 12 of the Constitution of the State of New York against the Defendants for depriving Plaintiff of his liberty and freedom for eight months.

JURISDICTION AND VENUE

5. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortious act against the Plaintiff inside the State of New York, Bronx, County which caused serious injury to the Plaintiff, a resident of the State of New York.

6. This action arises under the Fourth and Fourteenth Amendment to the Constitution of the United States pursuant to 42 U.S.C Section 1983 and under Article I Section 12 of the Constitution of the State of New York and under the Common law of the State of New York for Plaintiff's malicious prosecution.

7. This Court has concurrent jurisdiction over Plaintiff's civil rights causes of action based on 42 U. S. Code Section, 1983.

8. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the State of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

9. Plaintiff, Glenn Johnson is a African American male, who at all relevant times was a resident of the State of New York. Mr. Ross is a citizen of the United States and resides in Bronx County.

10. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

11. At all times relevant and set forth herein, the City of New York acting through the New York City Police Department was responsible for the policies, practices, training, supervision and conduct of the Defendants, police officers Michael Best and Andrew Tuers.

12. The City of New York is responsible for enforcing the rules of the New York City Police Department and the police officers within the New York City Police Department and for ensuring that the Defendants police officers named herein and all other New York City Police Officers obey the laws of the State of New York and the laws of the Constitution of the United States.

13. That at all relevant times Defendants were acting within the scope of the employment with the City of New York and under color of state law.

14. At all times relevant herein the Defendants, Michael Best and Andrew Tuers as police officers of the City of New York, were and still remain police officers employed by the New York City Police Department who acted in the capacity of agent, servant and employee of the

City of New York, New York City Police Department and acted within the scope of their employment and as such acted under color of state law.

15. The Office of the Bronx District Attorney is responsible for prosecution of violations of New York State laws

JURY DEMAND

16. Plaintiff demands trial by jury.

NOTICE OF CLAIM

17. Plaintiff, in furtherance of his New York State causes of action, filed a timely Notice of Claim within ninety days of the dismissal of the criminal charges against him on July 27, 2021, against the named Defendants and the City of New York in compliance with General Municipal Law Section 50-e.

18. On July 10, 2021, the Comptroller of the City of New York acknowledge receipt of Mr. Johnson's Notice of Claim by assigning Claim number 2021PI020545.

19. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

20. This action has been commenced within one year and ninety days of the date of the incident complained for malicious prosecution pursuant to New York State law and within the three years statutory period pursuant to under 42 U.S. Section 1983, for false arrest, false imprisonment, malicious prosecution and violation of Plaintiff's right of Due Process of law.

21. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

22. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

23. That by reason of the foregoing, Plaintiff Glenn Johnson has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

24. That on or about November 19, 2020, at approximately 1:20 am. Mr. Johnson was driving his motor vehicle along Prosect Ave. Bronx, New York near East 168th Street, Bronx, New York when he stopped at a store to make a purchase.

25. Plaintiff got out of his vehicle and began to walk inside the store. As Mr. Johnson exited the store he began to walk toward his vehicle and saw a woman who asked Plaintiff " Do you want to hang out?".

26. The unidentified female then told Mr. Johnson that she lived nearby, around the corner.

27. The woman then told Mr. Johnson that "It's cold outside", and proceeded to ask the Plaintiff **if she could get in his car because she was cold.**

28. Mr. Johnson consented and allowed the women to enter his vehicle.

29. The unidentified female opened the door to Mr. Johnson's motor vehicle and proceeded to sit next to the Plaintiff in the front passenger seat of the vehicle.

30. The woman told Mr. Johnson that she wanted to hang out and get high.

31. Mr. Johnson informed the women that he did not get high. Mr. Johnson wanted to hang out and allowed the women in his vehicle.

32. Mr. Johnson , with the consent of his female passenger, drove away from East 168th St, and began to drive towards the highway.

33. Suddenly, while Plaintiff was driving along the highway, the female passenger changed her mind and demanded to get out of the car.

34. Mr. Johnson didn't have a problem letting the female out his vehicle but could not let the woman out his vehicle as he drove on the highway.

35. Plaintiff told his passenger that he could not stop the car on the highway to let her out.

36. Mr. Johnson informed his passenger that he would let her out once he drove off the highway.

37. Mr. Johnson told his passenger that he would drive her back to where they had met and will drop her off there, near the area that the passenger lived.

38. Plaintiff drove back to the original place where he first saw his female companion and let her out the car without incident.

39. In fact, Mr. Johnson gave the unidentified female his phone number intending to see the woman again and for her to call him some time later.

Plaintiff's arrest

40. On or about November 24, 2020, Mr. Johnson received a telephone call from a man who identified himself as Detective Michael Best.

41. Detective Best informed Mr. Johnson that he wanted to speak with the Plaintiff.

42. Detective Best did not disclose the reason that he wanted to speak with Mr. Johnson.

43. Mr. Johnson asked Detective Best why he was being requested to come to the 42nd precinct and speak with the detective.

44. Mr. Johnson, knowing that he had not committed any criminal activity, immediately left his residence and went to the precinct to speak with Detective Best.

45. Upon arriving at the police precinct, Detective Best informed Mr. Johnson that he was under arrest.

46. Detective Best held Plaintiff in custody and charged Mr. Johnson with Unlawful Imprisonment, Sexual Abuse and Harassment.

47. Plaintiff vehemently denied all the charges .

48. Upon arraignment the Criminal Court Judge set bail/bond at \$ 10,000.

49. Mr. Johnson, being indigent, could not make the bail and was remanded to Rikers Island where he remained charged on this case until all charges related to his November 24, 2020, arrest were favorably dismissed on July 6, 2021.

50. Mr. Johnson was forced to appear in Criminal Court, Bronx, New York on November 25, 2020, November 30, 2020, December 14, 2020, December 28, 2020, January 4, 2021, March 18, 2021, and on July 6, 2021, when all charges were dismissed and sealed.

51. Detective Best knew or should have known that Mr. Johnson's accuser, Tammy Wylie was unreliable when Ms. Wylie informed Detective Best that she, not Plaintiff Johnson offered to perform a sexual act on the Plaintiff for \$40.

52. Upon information and belief, Ms. Wylie informed Detective Tuers that she offered to commit a sexual act on the Plaintiff for \$40. " **In Person Interview Report**" prepared by Detective Andre Tuers on November 19, 2020.

53. Ms. Wylie informed Detective Tuers that Plaintiff would not let her out his vehicle.

54. Ms. Wylie also informed Detective Tuers, according to his In Person Interview Report, that she allowed the unidentified man to "kiss her feet".

55. Detective Tuers, closed the case against Mr. Johnson within his unit , the Bronx. Special Victims Squad because according to Detective Tuers report, "**no sex or crime occurred.**"

56. The case initially assigned to Detective Tuers was transferred to Detective Michael Best.

57. That Detective Tuers knew or should have known that the statement made by Ms. Wylie were inconsistent with probable cause to have reasonably believed that Plaintiff Glenn Johnson had committed a criminal offense.

58. Ms. Wylie did not identify Plaintiff as the person who she allowed to kiss her as Glenn Johnson, the Plaintiff in the instant matter.

59. On or about November 19, 2020, Detective Best conducted a computer search of the phone number given to Ms. Wylie which was owned by Plaintiff Johnson.

60. On November 24, 2020, Detective Best arrested Plaintiff Johnson and charged the Plaintiff with Unlawful Imprisonment, Sexual Abuse and Harassment.

61. All charges were favorably dismissed on July 2, 2021.

62. Upon information and belief, Plaintiff's motor vehicle was impounded by the New York City Police Department at the behest of the Defendant officers.

63. That upon information and belief there was no DNA evidence supporting the alleged sexual act alleged by Ms. Wylie and Detective Best.

64. That Plaintiff informed the officers that he never touched the woman who he had allowed to enter his vehicle.

65. The Defendants lacked probable cause to arrest Mr. Johnson and that the Defendants knew or should have known during the eight months of Plaintiff's incarceration that Mr. Johnson had not committed the offenses as charged.

**Negligent Mismanagement
of the Bronx District Attorney's Office:**

66. That the resultant physical and mental injuries to the Plaintiff due to his wrongful incarceration was caused by the failure and the Negligent Mismanagement of the Bronx District Attorney's Office lead Darcel Clark due the failure to train the Assistants District Attorneys and other personnel within the Bronx District Attorney's Office with regard to proper procedures for determining whether persons prosecuted by them and the evidence submitted by the Respondent police officers were in fact sufficiently reliable to continue to hold the Plaintiff in custody for a period of eight months without probable cause .

67. That the failure of the District Attorney's Office to properly train their assistant district attorneys that participated in Plaintiff's underlying criminal prosecution which legal justification and their unreasonable reliance on false and inconsistent statements made by an alleged victim and false reports submitted by the underlying police officers constituted deliberate indifference to the Claimant's Constitutional Rights.

68. The City of New York is liable under 42. U.S Section 1983, for the Negligent Mismanagement of the Bronx District Attorney's Office insofar as the Bronx District Attorney acted as the Official Policy Maker per Administrative Code of the City of New York Section 3-601(b).

69. That such said mismanagement of the District Attorney's Office as set forth above was due to the District Attorney's failure to train and supervise employees regarding their legal obligations and that such management failures constituted significant defects in the district attorney's office and role as a local policy maker and as a result the City of New York should be held liable for Mr. Johnson's extended, prolonged and unlawful incarceration.

70. That as a result of the deliberate indifference by the Bronx District Attorney's office and the underlying police officers, Mr. Johnson was caused to suffer severe mental and emotional distress.

**AS AND FOR A FIRST SECOND CAUSE OF ACTION ON BEHALF
OF PLAINTIFF GLENN JOHNSON AGAINST DEFENDANTS POLICE OFFICERS
MICHAEL BEST AND ANDREW TUERS FOR FALSE ARREST AND FALSE
IMPRISONMENT PURSUANT TO 42. U. S.C. SECTION 1983**

71. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "70", with the same force and effect as though more fully set forth at length herein.

72. That at all time herein mentioned Defendant Police Officers, Michael Best, and Andrew Tuers falsely arrested, imprisoned and participated in the prosecution of the Plaintiff without probable cause to have reasonably believed that the Plaintiff had committed the unlawful acts for which accused on November 24, 2021.

73. Plaintiff Johnson was unreasonably seized and incarcerated by officer Michael Best without probable cause and with information consisted with Plaintiff's innocence which the Defendant officer chose to ignore resulting in eight months of unlawful incarceration.

74. Mr. Johnson was conscious of his detention, arrest, and seizure and did not consent to his confinement.

75. That the Defendant police officers, Michael Best and Andrew Tuers knew or should have known that they lacked probable cause to arrest and seized the Plaintiff and that Plaintiff had not been engaged in any criminal activity at the time of his arrest.

76. Mr. Johnson was wrongfully and unjustifiably held against his will and unreasonably seized, and deprived of his liberty without due process of law.

77. That officers knowingly and willfully prepared false police reports accusing Plaintiff of crimes for which the officers knew Plaintiff had not committed.

78. That the Defendants, Michael Best and Andrew Tuers abuse of their authority and position as New York City Police officers which caused Plaintiff's unlawful detention.

79. That the Defendant police officers knowingly and willfully deprived Mr. Johnson of his right to liberty and freedom under the Fourth and Fourteenth Amendments to the Constitution of the United States, secured by 42 U.S.C Section 1983.

80. The Defendant officers' actions were willful , wanton and reckless.

81. That Plaintiff Johnson was subjected to and suffered humiliation and personal degradation, abuse, emotional distress, trauma, embarrassment, ridicule, and scorn, caused by the Defendants abuse of authority and lack of probable caused during the course of Plaintiff's arrest, detention and prosecution.

82. As a direct and proximate result of Officers Best and Tuers' misconduct and abuse of authority described above, Plaintiff Glenn Johnson was caused to suffer severe eight months of emotional distress inside the walls of the New York City Department of Corrections' Rikers Island, for which the Plaintiff now seeks financial compensation for the pain, present and future emotional distress in an amount that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF
GLENN JOHNSON AGAINST POLICE OFFICERS MICHAEL BEST AND ANDREW
TUERS FOR VIOLATING PLAINTIFFS' RIGHT TO BE FREE FROM
UNREASONABLE SEARCH AND SEIZURE PURSUANT TO 42 U.S CODE SECTION
1983.**

83. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "82," with the same force and effect as though more fully set forth at length herein.

84. The instant action against the Defendants is predicated pursuant to 42 U.S.C Section.

85. 42 U.S.C. Section 1983, states in relevant part that:

Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress... **42 U.S.C Section 1983,**

86. Plaintiffs' federal claims against the Defendants are brought pursuant to the Fourth Amendment to the Constitution of the United States for the Defendants unreasonable search and seizure and malicious prosecution of Plaintiff, Glenn Johnson.

87. Defendants violated Plaintiffs' Constitutional rights under the Fourth Amendment by arresting Plaintiff Johnson and holding Plaintiff in custody without probable cause to have reasonably believed that Mr. Johnson had committed the alleged criminal offenses.

88. That the manner in which the Plaintiff was seized and held in custody as set forth herein was objectively unreasonable under the circumstances as set forth herein caused Plaintiff's deprivation of liberty for approximately eight months.

89. That the Defendant's conspired together to violate Plaintiffs' rights to be free from the unreasonable search, seizure and deprivation of liberty without probable cause for Plaintiff's arrest, detention or prosecution.

90. That in the manner described herein, the Defendants acted with deliberate indifference and with reckless disregard to Plaintiff's Constitutional rights.

91. Mr. Johnson was intentionally deprived of his rights, privileges and immunities secured to him under the Constitution and laws of the United States, and the State of New York including but not limited to the Plaintiffs' rights secured under the Fourth, and Fourteenth

Amendment to the Constitution of the United States, and pursuant to Article I, Section 12 of the Constitution of the State of New York.

92. That the Defendant police officers, acting in their individual, and official capacity, and under color of law, conspired together and with others, and reached a mutual understanding to undertake a course of conduct that violated Plaintiff's rights, privileges, and immunities thereof.

93. As a direct and proximate result of the conspiracy between the Defendant officers, Mr. Johnson was unreasonably searched, seized, and imprisoned in violation of Plaintiff's rights under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

94. That by reason of the foregoing, Glenn Johnson was intentionally confined without privilege and without probable by the Defendant police officers, Michael Best and Andrew Tuers.

95. As a consequence thereof, Plaintiff Glenn Johnson has been greatly injured.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF
GLENN JOHNSON AGAINST THE CITY OF NEW YORK AND DEFENDANTS,
MICHAEL BEST AND ANDREW TUERS PURSUANT TO 42 U.S.C SECTION
1983, FOR VIOLATING PLAINTIFF'S RIGHTS PROTECTED UNDER THE DUE
PROCESS CLAUSE OF THE FOURTEENTH AMENDMENT TO THE
CONSTITUTION OF THE UNITED STATES**

96. That Plaintiff's repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "95", with the same force and effect as though more fully set forth at length herein.

97. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of Plaintiff's right to free from the deprivation of liberty without due process of law.

98. That the Defendant Officers detained and seized Plaintiff Johnson without a reasonable belief that Mr. Johnson had committed the underlying criminal charges as alleged in the criminal information filed by Detective Best.

99. That the Defendants possessed information prior to Plaintiff's arrest that Mr. Johnson had not committed the acts described in the criminal complaint and chose to ignore such information which caused Plaintiff to be deprived of his liberty for approximately eight months.

100. The Defendants seizure, detainment, prosecution and incarceration was patently unreasonable and deprived Plaintiff of his liberty interest without probable cause or legal justification.

101. As direct and proximate result of the Defendant officers' conduct, Plaintiffs' rights to Due Process of Law were violated causing Plaintiff to suffer humiliation, degradation, embarrassment, and physical and mental pain and suffering.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
GLENN JOHNSON AGAINST THE CITY OF NEW YORK AND THE OFFICE OF
THE BRONX DISTRICT ATTORNEY PURSUANT TO 42 U.S.C. SECTION 1983,
FOR FAILURE TO TRAIN, SUPERVISE OR DISCIPLINE POLICE OFFICERS
MICHAEL BEST AND ANDREW TUERS.**

102. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through "101", with the same force and effect as though more fully set forth at length herein

103. That at all relevant times herein, Defendant City of New York, acting through its New York City Police Department developed, maintained, implemented, enforced, encouraged, and sanctioned de facto policies, practices and or customs exhibiting deliberate indifference to the

Plaintiff's Constitutional rights which caused Plaintiff, Glenn Johnson to be deprived of his right to liberty for eight months without due process of law.

104. The Defendants' unlawful actions were done willfully, knowingly and with specific intent to deprive Plaintiff of his constitutional rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

105. That at all relevant times, the City of New York acting through the Defendant Police officers had de facto policies, practices, customs and usages that directly and proximately caused the violation of Plaintiff's Fourth and Fourteenth Amendment rights as alleged herein.

106. That at all relevant times the City of New York failed to train, supervise or discipline the Defendant police officers, Michael Best and Andrew Tuers involved in Plaintiff's investigation, and incarceration which directly and proximately causing the violation of Plaintiff's Constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States.

107. The acts complained of herein were carried out by the Defendants police officers pursuant to the customs and practices of the New York City Police Department or as a result of the City of New York's failure to train, supervise or discipline the Defendant officers.

108. The City of New York through its policy makers and agents were fully aware of and did nothing about its police officers who engaged in the unreasonable seizure, arrest and continued prosecution of Plaintiff Johnson without probable cause.

109. That the City of New York failed to adequately train, monitor, supervise or discipline its officers, agents and or servants including the Defendant police officers to respect and comply with the Fourth and Fourteenth Amendments rights of individuals included Plaintiff Clarence Ross.

110. As a direct and proximate result of the City's failure to train, supervise or discipline the Defendant officers and the lack of adequate policies, practices and customs, Mr. Johnson sustained damages as set forth herein.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST THE DEFENDANTS, MICHAEL BEST AND ANDREW TUERS FOR
MALICIOUS PROSECUTION PURSUANT TO 42 U.S.C. SECTION 1983.**

111. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through "110", with the same force and effect as though more fully set forth at length herein

112. That the Defendants, their agents, servants and /or employees, without cause or justification, intentionally and maliciously initiated the underlying criminal proceedings against Plaintiff Johnson without probable cause to have reasonably believed Mr. Johnson has committed the underlying criminal acts for which he was accused.

113. That the Defendant officers continued the prosecution against Mr. Johnson without probable cause.

114. Plaintiff was deprived of his right to liberty for approximately eight months due to his wrongful arrest, incarceration inside Rikers Island.

115. The criminal proceeding against Plaintiff Johnson was favorably terminated and sealed on July 6, 2021.

116. That the prior criminal proceeding against Mr. Johnson was initiated without probable cause.

117. That the Defendants, Detectives Michael Best and Andrew Tuers initiated the underlying criminal proceedings against the Plaintiff with malice.

118. As direct and proximate result of the Defendant officers' misconduct, Plaintiff suffered extreme mental anguish, humiliation, pain and emotional distress from his wrongful and illegal eight months of incarceration in Rikers Island..

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST THE DEFENDANTS, MICHAEL BEST AND ANDREW TUERS FOR
MALICIOUS PROSECUTION PURSUANT TO THE COMMON LAW OF THE STATE
OF NEW YORK.**

119. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through "118", with the same force and effect as though more fully set forth at length herein.

120. That the Defendants, their agents, servants and /or employees, without cause or justification, intentionally and maliciously initiated the underlying criminal proceedings against Plaintiff Johnson without probable cause to have reasonably believed Mr. Johnson has committed the underlying criminal acts for which he was accused.

121. That the Defendant officers continued the prosecution against Mr. Johnson without probable cause.

122. Plaintiff was deprived of his right to liberty for approximately eight months due to his wrongful arrest, incarceration inside Rikers Island.

123. The criminal proceeding against Plaintiff Johnson was favorably terminated and sealed on July 6, 2021.

124. That the prior criminal proceeding against Mr. Johnson was initiated without probable cause.

125. That the Defendants, Detectives Michael Best and Andrew Tuers initiated the underlying criminal proceedings against the Plaintiff with malice.

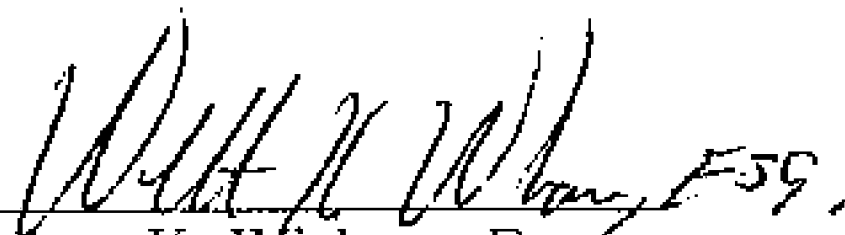
126. As direct and proximate result of the Defendant officers' misconduct, Plaintiff suffered extreme mental anguish, humiliation, pain and emotional distress from his wrongful and illegal eight months of incarceration in Rikers Island..

WHEREFORE, Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

- A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.
- B. Awarding punitive damages to Plaintiff in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.
- C. An award to Plaintiff of the costs and disbursements herein.
- D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.
- E. Granting such other and further relief as this Court may deem just and proper.

Dated: May 15, 2022

Bronx, New York

By  Esq.,
Welton K. Wisham, Esq.
The Law Office of Welton K. Wisham
1200 Waters Pl., Suite 105
Bronx, New York 10461
(718) 924- 3557 Office
(718) 678-8062 Fax
Attorney for the Plaintiff

**SUPREME COURT OF THE STATE OF NEW YORK
 COUNTY OF BRONX**

GLENN JOHNSON

AFFIDAVIT

Plaintiff,

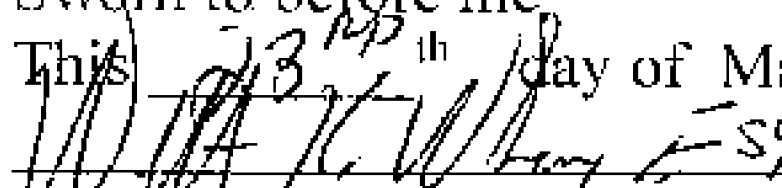
CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT.
 BRONX DISTRICT ATTORNEY'S OFFICE,
 DETECTIVE MICHAEL BEST, SHIELD No.586, IN HIS INDIVIDUAL
 AND OFFICIAL CAPACITY, AND DETECTIVE ANDREW TUERS,
 TAX REGISTRATION NO. 952305, IN HIS INDIVIDUAL AND OFFICIAL
 CAPACITY.

Defendants,

STATE OF NEW YORK)
) ss.:
 COUNTY OF BRONX)

I, **Glenn Johnson** duly sworn, deposes and says under penalty of perjury that
 Deponent is the Plaintiff in the within action, that I have read the foregoing **Complaint** and
 knows the contents thereof ; that the same is true to deponent's own knowledge, except as to
 those matters therein stated to be alleged on information and belief, and that as to those matters
 deponent believes them to be true.


Glenn Johnson
 880 Boynton Ave. Apt 19G
 Bronx, New York 10473

Sworn to before me
 This 23rd day of May, 2022

NOTARY PUBLIC

STATE OF NEW YORK
 County of Bronx
 City of New York
 02WZ6386733
 1-28-2023